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EXAMPLE DOCUMENT. Janfrederik Timber Products (Pty) Ltd is a fictitious company. Every company, person, address, date, figure and reference number in this example is made up; only the Care Net letterhead and any public emergency number are real. For guidance only; not a document to sign or rely on.

Example for a Health and Safety File, Section B: Policy, organisation and appointments

Assignment of Duties under Section 16(2) of the OHS Act

Letter from the Chief Executive Officer to the Operations Director, with written acceptance

About this example	Detail
Company in the example	Janfrederik Timber Products (Pty) Ltd, a fictitious company
Where it is filed	Section B: Policy, organisation and appointments
Published by	Care Net Consultants, as guidance for companies building a Health and Safety File

How to use this example

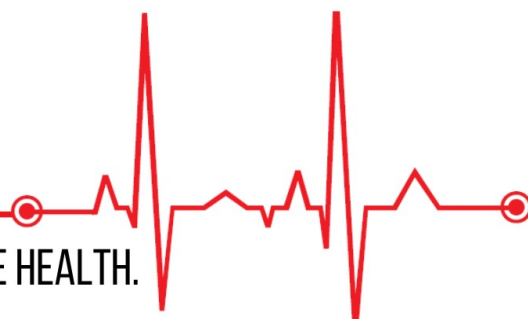
This example shows the form and content Care Net recommends for this document in a Health and Safety File. Adapt it to your company, your sites and your appointments; your registered Health and Safety practitioner confirms it before your File is released. Not legal advice.

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Assignment of Duties under Section 16(2) of the OHS Act

Letter from the Chief Executive Officer to the Operations Director, with written acceptance

To: Johan Pretorius, Operations Director. **From:** Thandeka Zulu, Chief Executive Officer. **Date:** 5 January 2026. **Reference:** JTP/HS/B/2026/01

1. Assignment

Dear Johan

As Chief Executive Officer of Janfrederik Timber Products (Pty) Ltd, I carry the duties of the chief executive officer under **section 16(1) of the OHS Act**. Under **section 16(2) of the OHS Act**, I assign to you the duties set out in this letter, within the scope below, with effect from **12 January 2026**. You have the authority and the resources described here to carry them out.

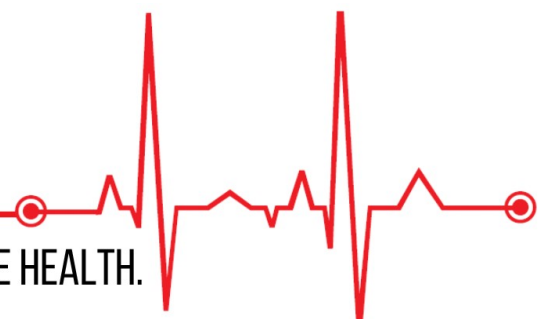
2. Scope

2.1 Sites and activities

The sawmill, treatment plant and timber yard at 3 Bosbok Road, Mooi River Industrial Area, KwaZulu-Natal, and the distribution depot at 18 Harding Street, Estcourt, including all employees, contractors and visitors at these sites and company vehicles operating from them.

2.2 Duties assigned to you

1. Make sure a baseline risk assessment is done for each site, reviewed every year and after any incident or change, and that its controls are put in place.
2. Appoint in writing the competent persons each site needs, including the supervisors of machinery, the incident investigators and the first aiders, and keep their appointments and competence records in the Health and Safety File.
3. Make sure the health and safety representatives are designated, trained and able to carry out their functions, and that the health and safety committee meets as its constitution sets.



4. Make sure every employee is inducted, trained for the work they do, and issued with the protective equipment the risk assessment sets.
5. Put in place the section 37(2) agreements with every contractor working on the sites, and monitor contractors against them.
6. Make sure incidents are reported, investigated and recorded, and that the corrective actions are closed.
7. Keep the Health and Safety File for both sites current and available for inspection.

2.3 Authority and resources

- Authority to stop any work that places a person in danger, at either site, without prior approval.
- A health and safety budget of **R385 000,00** for the 2026 financial year, and authority to spend up to **R50 000,00** on any single item without further approval. Larger items come to me.
- The support of the Health and Safety Officer, Lindiwe Ngcobo, and of the external registered health and safety practitioner the company engages.

2.4 Reporting

You report to me in writing every month on incidents, open corrective actions, appointments due for renewal, training and medical surveillance status, and any matter that needs my decision. You tell me the same day about any serious incident.

3. The chief executive remains responsible

This assignment does not relieve me of my own duties. As Chief Executive Officer I remain responsible under the OHS Act for the company's health and safety performance, and I will check that the assigned duties are carried out. This assignment stays in force until I withdraw or change it in writing, or until you leave the position of Operations Director.



Chief Executive Officer

Thandeka Zulu, Date: 05/01/2026

4. Acceptance by the assignee

I, **Johan Pretorius**, Operations Director, have read this letter. I accept the duties assigned to me under section 16(2) of the OHS Act within the scope, authority and resources set out above. I understand that the Chief Executive Officer remains responsible, that I must report as set out in clause 2.4, and that I must tell the Chief Executive Officer in writing if I do not have the authority or resources to carry out any assigned duty.

Operations Director (assignee)

Johan Pretorius, Date: 07/01/2026

The signed original is filed in Section B of the Health and Safety File, with copies to the assignee and Human Resources. It is reviewed whenever the scope, the sites or the person in the position changes.

End of the example. The company, people and records in it are fictitious; the cover page explains how to use it.



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